

Bhola Singh v. State of U.P.

Allahabad High Court · Division Bench · 18 December 2019 · Writ-C No. 41972 of 2019 · **Writ disposed; hearing and speaking final order directed; s.127 open**

HEADNOTE

A writ seeking certiorari to quash an undated Section 126 provisional assessment of Rs. 6,09,547 was disposed of without deciding its validity. Taking a lenient view, the Court directed the consumer to appear before the Executive Engineer with objections and evidence, required a speaking and reasoned final order within four weeks, stayed coercive action for seven weeks or until the objection was decided, and left any challenge to the final order to a Section 127 appeal. Default in appearance or in filing objections would revive the recovery citation.

FACTUAL SUMMARY

Bhola Singh challenged an undated provisional assessment of Rs. 6,09,547 issued by the Executive Engineer under Section 126 of the Electricity Act, 2003. He alleged that the respondents were taking coercive recovery steps without a hearing and without following the U.P. Electricity Supply Code, 2005. The Division Bench heard counsel for the petitioner and the electricity department and disposed of the writ on 18 December 2019 by directing a hearing on objections rather than quashing the assessment.

HOLDING-UNITS

HOLDING-UNIT · EA2003::126

provisional assessment — hearing, speaking final order, and Section 127 appeal

HOLDING

Without quashing the undated Section 126 provisional assessment, the Court directed the petitioner to appear on 6 January 2020 before the Executive Engineer with objections and evidence; required a speaking and reasoned final order within four weeks after considering those objections; stayed coercive action for seven weeks or until disposal of the objection, whichever was earlier; and left any grievance against the final order to an appeal under Section 127 of the Electricity Act, 2003. Default in appearance or in filing objections would revive the recovery citation. The writ was disposed of. ¶ 1

PRINCIPLE TAGS

premature-writ-against-provisional-s126-assessment The Court did not quash the undated provisional Section 126 assessment of Rs. 6,09,547; it disposed of the writ by sending the consumer back to object before the assessing officer. ¶ 1

final-assessment-order-mandatory-under-section-126-3 The Executive Engineer was directed to pass a speaking and reasoned final order after considering the petitioner's objections and evidence, within four weeks of the 6 January 2020 appearance. ¶ 1

ex-parte-s126-assessment-requires-hearing-before-recovery On the plea that coercive steps were being taken without a hearing, coercive action was stayed pending appearance and disposal of the objection, and would revive only on default in appearing or filing objections. ¶ 1

alternative-remedy-relegation-section-127 If aggrieved by the final order, the petitioner was left to file an appeal under Section 127 of the Electricity Act, 2003 in accordance with law. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY AND QUANTUM OF THE UNDATED PROVISIONAL ASSESSMENT OF RS. 6,09,547

¶ 1

NOT DECIDED — ALLEGED NON-COMPLIANCE WITH THE U.P. ELECTRICITY SUPPLY CODE, 2005

¶ 1

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.